

SOCIETY OF INFORMATION & COMMUNICATIONS TECHNOLOGY STUDENTS
(SINCOTECS)

CONSTITUTION AND BY-LAWS

PREAMBLE

We, the members of SINCOTECS, imploring the aid of Divine Providence, do hereby establish this Constitution and By-Laws in order to organize our members towards unity and harmony, for the benefit of all.

ARTICLE I: THE ORGANIZATION

- Section 1:** This organization shall be officially known as the **Society of Information & Communications Technology Students (SINCOTECS)**.
- Section 2:** The main office of SINCOTECS shall be located on the same floor as the Information Technology Education (ITE) program at Davao Central College’s main campus.



- Section 3:** The SINCOTECS seal is designed to reflect the organization's objectives.
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- The **outer circuits** represent the Bachelor of Science in Information Technology (BSIT) students, who are the foundation of the organization and the beneficiaries of the programs implemented by the SINCOTECS officers.
 - The **lightbulb** symbolizes the organization's commitment to finding creative, innovative, and sustainable solutions to real-world problems.
 - The **gear** symbolizes the organization's progress in developing ideas, plans, and solutions.
 - The **six nodes** represent the six objectives of the organization.
 - The **purple color** represents individuals who have a holistic view and can bridge the gap between technical and communication needs.
 - The **gray color** represents the organization's cutting-edge and innovative approach to technology.
 - **2016** is the year the organization was established.

ARTICLE II: ORGANIZATIONAL AIMS AND OBJECTIVES

The SINCOTECS commits itself to the pursuit of the following objectives:

- Section 1:** To nurture its members' potential and skills to address the current information technology needs.
- Section 2:** To recognize the role of information technology in gaining competitive advantage.
- Section 3:** To encourage its members to function effectively on teams and employ self- and peer-advocacy to address bias in interactions, establish goals, plan tasks, meet deadlines, manage risk, and produce deliverables.
- Section 4:** To have an annual project concerning how to analyze complex, real-world problems and identify and define computing requirements and apply computational approaches to the problem-solving process.
- Section 5:** To communicate effectively with diverse audiences the technical information that is consistent with the intended audience and purpose.
- Section 6:** To value the dignity of every student and personnel and guarantee total respect for human rights.

ARTICLE III: FUNDRAISING FEE

Section 1 – Qualifications

The following are qualified to become members of the organization:

- Section 2:** Fundraising Fee
- Only Bachelor of Science in Information Technology (BSIT) students who are officially enrolled in the current semester shall be granted fundraising fee.
 - A fundraising fee will be collected as a requirement for all SINCOTECS members. All fees are non-refundable.
- Section 3:** Revocation of Fundraising Fee
- a) Memberships may be revoked due to the following circumstances:
 - a. Failure to enroll as students in the BSIT program.
 - b. Inactivity of a member to attend organizational activities or failure to comply with the academic requirements.
- Section 4:** Prohibition of Hazing
- b) Students applying for fundraising fee shall not undergo psychological, physical, or any form of hazing.
- Section 5:** Dues
- Any member shall pay the required fundraising fee, annual dues and other dues to the Organization in such amount and manner of payment as may be fixed by the majority member of the Officers.
- c) Any member shall pay the required fundraising fee and other dues to the SINCOTECS Local Treasurer within the semester as part of the requirements for clearance. The Local Treasurer must post reminders to the members before the scheduled signing of clearance.

Section 6: Rights of Members

Every member has the following rights:

- 5.1 The right to vote in the election.
- 5.2 The right to be elected to any position.
- 5.3 The right to redress grievances. (All incident reports should be in written format and not in message format. Strictly no verbal complaints will be entertained.)
 - Written complaints format will be provided by the SINCOTECS.
- 5.4 The right to participate in deliberation, whether in a special committee meeting or in a general assembly.
- 5.5 The right to be given the privilege to inquire for the update of the reports prepared by the officers every semester for transparency purposes.

ARTICLE IV: PENALTY

Section 1 a. Fines Any member shall be penalized on the following grounds:

- 1.a.1 Voluntary offense of CBL;
- 1.a.2 Committing derogatory actions;
- 1.a.3 Members who do not cooperate or participate in any activities in the said organization;
- 1.a.4 Members who cannot able to cooperate to clean one of the computer laboratories to their respective year level
- 1.a.5 If there's no valid letter presented.

Section 2: Procedures of Fines and Penalty

The Implementing Rules and Regulations (IRR) of the above shall be determined by the Officers.

- a) The provided ITE Card of the member must be signed by the SINCOTECS officer during and after the event as part of the login and log out.
- b) Must present a valid document such as excuse letter signed by the parents, guardian or pastors of their respective church, employment certificate provided by the employer to be validated by the Program Head or the SINCOTECS Governor 1-2 days before the event and medical certificate must be submitted upon returning to the school.
- c) Failure to present any required documents of every activity shall result to corresponding sanction fee.
- d) If a member failed to submit the documents on the given deadline, he or she will pay the sanction fee depending on the number of days the documents were submitted. One day late is equivalent to 5 pesos of sanction fee excluding Saturdays and Sundays.

ARTICLE V: ORGANIZATION

The Local Council

Section 1. The Local Councils shall be composed of the following:

- A. The Executive Committee
 - a. The Governor
 - b. The Vice Governor
 - c. The Local Secretary
 - d. The Local Treasurer
 - e. The Local Auditor

- f. Local Public Relations Officer
- B. Local Legislative Body
 - a. The Local Council Representatives

Section 2. Qualifications of Members

A. Executive Committee

i. Governor

- a) He/She must not hold any other position/s in any organization/s.
- b) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- c) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.
- d) He/She must have one (1) to two (2) school year/s residency in the College.
- e) He/She must have basic knowledge on Parliamentary Rules and Procedures.
- f) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

ii. Vice Governor

- a) He/She must not hold any other position/s in any organization/s.
- b) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- c) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.
- d) He/She must have one (1) school year residency in the College.
- e) He/She must have basic knowledge on Parliamentary Rules and Procedures.
- f) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

iii. Local Secretary

- a) He/She must not hold any other position/s in any organization/s.
- b) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- c) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.
- d) He/She must have one (1) school year residency in the College.
- e) He/She must have an experience in secretarial works in any office or organization.
- f) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

iv. Local Treasurer

- a) He/She must not hold any other position/s in any organization/s.
- b) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- c) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.
- d) He/She must have one (1) school year residency in the College.
- e) He/She must have been a treasurer in any office or organization.
- f) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

v. Local Auditor

- a) He/She must not hold any other position/s in any organization/s.
- b) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- c) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.
- d) He/She must have one (1) school year residency in the College.
- e) He/She must have been an auditor in any office or organization.
- f) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

vi. Local Public Relations Officer

- g) He/She must not hold any other position/s in any organization/s.
- h) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- i) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.
- j) He/She must have one (1) school year residency in the College.
- k) He/She must have proficient oral and written communication skills in English and Filipino.
- l) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

B. Local Legislative Body

a. Representatives

- a) He/She must be an elected representative of his/her college by year level.
- b) He/She must be of good moral character as certified by the Guidance Officer of the College upon filing his Certificate of Candidacy.
- c) He/She must have passed at least 70% of his/her total enrolled units in the preceding semester prior to his/her filing of Certificate of Candidacy.

- d) Must have a General Weighted Average of 85% in the preceding semester prior to his/her filing of candidacy.

Section 2: Vacancy

In the event of a vacancy arising from death, resignation, or expulsion of any officer other than the Local Governor, the Vice Governor shall assume the responsibilities of the vacant position.

If an officer decides to resign due to valid reasons, they must adhere to the following procedure:

1. Draft a Resignation Letter addressed to the SINCOTECS Moderator.
2. Arrange a Personal Talk with the SINCOTECS Moderator before signing the Resignation Letter for approval.

Any member elected to fill the vacancy shall only serve for the remaining term of the departing officer. The election process for filling the vacancy requires a majority vote from the existing officers, with the final approval of the SINCOTECS Moderator.

Section 3: Powers and Duties of the Officers

A. The Executive Committee

i. The Governor

- a) Shall be the head of the Local Council
- b) Shall implement programs and projects in conformity with the needs of his college and with consent of the Local Council.
- c) Shall preside over sessions and meetings of the Local Council.
- d) Shall sign documents, laws, and policies of the Local Council.
- e) Shall be the official representative of his college.
- f) Shall see to it that orders, laws, and ordinances passed by the House of Senate and approved by the President of the DCC-CSSG will be properly implemented in his college.
- g) Shall submit monthly reports of the activities to the President of DCC-CSSG regarding the activities of his college.
- h) Shall create special committees and appoint its chairperson with the consent of the Committee on Appointments, whenever the need for immediate action arises. The Committees shall not be limited to the following:
 - i. Working Head Committee
 - ii. Logistics Committee
 - iii. Ways and Means Committee
 - iv. Adhoc Committee
 - v. Students Grievance Committee
 - vi. Discipline and Policies Committee
- i) Shall be one of the signatories of the Local Council Bank Account.
- j) Shall present a Budget Appropriation subject for approval of the Representatives.

ii. The Vice Governor

- a) Shall be the Presiding Officer of the Representatives.
- b) Shall assume all the duties and responsibilities of the Governor in cases of the latter's absence or disability.
- c) Shall perform such other duties and functions as the Governor may direct.

iii. The Local Secretary

- a) Shall take the minutes of all meetings called by the Local Council.
- b) Shall keep all the records of the Local Council.
- c) Shall issue calls and notices of all meetings.
- d) Shall render reports of all activities and status of the Local Council as the Governor may direct.
- e) Shall furnish copies and notices and communications to all offices concerned.
- f) Shall prepare the agenda of the Local Council meeting.
- g) Shall be the property custodian of the Local Council.

iv. The Local Treasurer

- a) Shall take charge of the collections of the Local Council.
- b) Shall be one of the signatories of the Local Council bank account.
- c) Shall disburse money upon the approval of the Local Legislative Body.
- d) Shall prepare semestral financial statement and report the same to the Local Auditor and the Governor.
- e) Shall take charge of the liquidations of its liabilities and submit the same to the School Auditing Officer
- f) Shall perform such other duties and functions as the Local Council Governor may direct.

v. The Local Auditor

- a) Shall audit accounts, receipts of and expenditures/uses of funds and property owned/held entrust by the Local Council.
- b) Shall make post auditing on all materials purchased by the Local Council and take charge of the liquidation of its liabilities and submit the same to the Auditing Officer.
- c) Shall perform such other duties and functions as the Local Council Governor may direct.

vi. The Local Public Relations officer

- d) Shall popularize the thrust and objectives of the Local Council
- e) Shall build and maintain a credible image for Local Council

- f) Shall take charge of all the promotions of Local Council projects, activities, towards the school administrations, faculty, staff and students.
- g) Shall perform other duties and functions as the Local Council Governor may direct.

B.The Local Legislative Body

i. The Representatives

- a. Shall legislate and formulate local ordinances and policies to be approved by the Governor.
 - i. Shall deliberate and approve the Budget Appropriation presented by the Local Council Governor.
 - ii. Shall attend House of Senate sessions.

Section 4: Meetings

- a) The officers shall hold their quarterly meeting per semester at the ITE Office of Davao Central College or upon the request of the SINCOTECS Governor. The time and place of each meeting shall be notified to the officers accordingly.
- b) The general assembly shall be held every semester at Davao Central College. If there is a change of venue or time, the members shall be notified accordingly.
- c) Special meetings of the officers and of the general membership shall be convened by the Governor when necessary or when requested by 2/3 of the members of the Board.
- d) A simple majority (50% + 1) of the members present at any meeting shall constitute a quorum.

ARTICLE VI: ELECTIONS AND TERMS OF OFFICE, QUALIFICATIONS

Section 1: All officers of the Board shall be elected by the SINCOTECS members.

Section 2: The elected officers shall assume office immediately after their election and shall hold office for a term of one (1) year, or until their successors have been elected and installed.

Section 3: Any bona fide member of the organization who is in good standing and has the capacity to govern an organization is qualified for any of the elective positions.

Section 4: In case of emergency situations, such as a lockdown due to a pandemic or any other instance that may cause the cancellation of elections, the SINCOTECS moderator may appoint qualified students to assume the positions of SINCOTECS officers.

ARTICLE VII: MISCELLANEOUS PROVISIONS

Section 1: The Obligation of the Members

- a) There will be a fundraising fee in the said organization (SINCOTECS) every semester.
- b) The SINCOTECS officers must plan before the start of a new school year to determine the target contribution from each member.
- c) Each member must contribute at least ₱100.00 but not more than ₱200.00, which will be used for the development of the organization.
- d) The funds can be raised through direct payment or through a fundraising program participated in by the members.
- e) Only members who participated in the fundraising activity will receive a subsidy from the individual contribution.

- f) New members of the organization will be given the option to acquire the departmental polo shirt.
- g) For continuing members, purchasing the organizational shirt is optional.
- h) All fund collections within SINCOTECS must be documented through an approved resolution.

ARTICLE VIII: AMENDMENTS

Section 1: Proposing Amendments

- a) Amendments to this Constitution and By-Laws may be proposed in writing and duly signed by at least one-fifth of the members of the organization.
- b) Amendments shall only be made every five (5) years, except if there is a provision in this CBL that is inconsistent with the provision of the Philippine Constitution.

Section 2: Approval of the Proposed Amendments

- a) The proposed amendments, together with the explanations justifying them, shall be furnished by the proponents to all officers and shall be discussed during the meeting called for the purpose.
- b) During the meeting of the officers with the presence of the proponents, the proposed amendments shall be discussed, deliberated, and voted upon. A majority vote of all members in attendance shall be necessary to approve any amendments.

ARTICLE IX: TRANSITORY PROVISION

All existing policies and resolutions enacted by the Board that are not inconsistent with this Constitution and Bylaws shall remain in effect until they are amended, repealed, or revoked.

ARTICLE X: SCHOOL YEAR

The provisions of this Constitution and Bylaws shall apply to all officers and members of this organization starting on the first day of classes of the School Year 2023 – 2024 and ending on the last day of the School Year 2027 - 2028.

Noted By:

JESARYLL VALDERAS
SINCOTECS Moderator

Evaluated By:

SHEILA T. CAGUIMBAL, LPT
OSAS Head

SINCOTECS OFFICERS
A.Y. 2023-2024

MARK LAWRENCE NARISMA
SINCOTECS Governor

ARVIN KURT MORALES
SINCOTECS Vice Governor

KENNETH BRYAN CEPE
SINCOTECS Secretary

MARIJOY MAARAT
SINCOTECS Treasurer

RICA REGIDOR
SINCOTECS Auditor

RADNY DEL SOCORRO
SINCOTECS P.R.O

BADR ARCEGA
SINCOTECS Ad hoc

TROY JONES UCANG
SINCOTECS Logistics

CHARLES EVANGELIO JR.
SINCOTECS Ways & Means

ROBERT JAY GONZALES
SINCOTECS Working Head Committee

JAY AR LUMUNGSUD
SINCOTECS Student Grievance

JOSE PAPAS III
SINCOTECS Disciplinarian